BEFORE THE BOARD OF COUNTY COMMISSIONERS
FOR JOSEPHINE COUNTY
STATE OF OREGON

In the Matter of Temporarily Adopting Oregon State Treasury Policies Regarding The Protection Of Public Funds and Third Party Vendors	)))	**Order No. OR26-060**

WHEREAS, Oregon Revised Statutes (ORS) Chapter 295 requires specific protections for public funds, and Josephine County is developing county-specific policies to be adopted as part of the County Administrative Policies; and

WHEREAS, ORS 295.098(2) permits a governing body to adopt all or part of the State Treasurer's model policy; and

WHEREAS, the Oregon State Treasury has established policies for compliance with ORS Chapter 295, and Josephine County regards these as model policies; now, therefore

IT IS HEREBY ORDERED that Oregon State Treasury Policies FIN 214 and FIN 216 are adopted on a temporary basis to ensure the protection of public funds in compliance with ORS Chapter 295. All alternative collateralization methods set forth in FIN 214 and FIN 216 are approved as alternative methods for the County, in addition to those specifically identified in ORS 295.098(4).

IT IS FURTHER ORDERED that all third-party vendors shall be vetted and approved by the Josephine County Treasurer, as the appropriate public official of the public body. Any additional alternative methods identified as viable may be presented by the Treasurer to the Board of County Commissioners for potential approval by Order or Resolution of the Board, together with the findings required by ORS 295.098.

IT IS FURTHER ORDERED that all departments shall provide the documentation and information requested by the Treasurer so that the required findings can be made, and that no department shall enter into an agreement with a third-party vendor to which ORS Chapter 295 applies without the Treasurer's explicit written approval.

IT IS FURTHER ORDERED that this Order shall take effect on the date of its adoption and shall remain in effect until the Board of County Commissioners adopts county-specific policies implementing ORS Chapter 295 as part of the County Administrative Policies. Upon that adoption, this Order, in its entirety, shall expire and be superseded by those policies.

DONE AND DATED this _____ day of _____, 2026.

JOSEPHINE COUNTY
BOARD OF COMMISSIONERS

_____
Ron Smith, Chair

_____
Colene Martin, Vice-Chair

_____
Gary Richardson, Commissioner

Status **Active** PolicyStat ID **17131531**

Origination	12/2006
Last Approved	11/2024
Last Revised	11/2024
Next Review	11/2026
Owner	Bryan González: Deputy Director of Finance
Policy Area	Finance

FIN 214: Third Party Vendor Requirements

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INTRODUCTION & OVERVIEW

Summary Policy Statement

Pursuant to its designation as the sole banking and cash management officer for the State of Oregon, the Oregon State Treasury ("Treasury") has broad authority to review, establish, and modify policies and procedures for the efficient handling of cash and cash equivalents under the control of all Agencies. Agencies are directed to employ the principles, standards, and related requirements for cash management prescribed by Treasury. This policy establishes how Agencies will seek qualification of Third Party Vendors with whom an Agency proposes to contract to collect, store, process, transmit, or otherwise provide certain Cash Management services on behalf of the Agency.

Purpose and Goals

The goal of this policy is to clarify the expectations of Agencies, as well as their respective Third Party Vendors, with regard to the use of Third Party Vendors and the provision of Cash Management services related to moneys deposited with Treasury.

Applicability

The provisions of this policy apply to Agencies as defined within, as well as any other entity, including a public university, that has funds held at Treasury by virtue of an intergovernmental or other agreement.

Authority

ORS 293.875 & ORS 352.135(3)

POLICY PROVISIONS

Definitions

Agency (Agencies): Every state officer, board, commission, department, institution, branch or agency of the state government, whose costs are paid wholly or in part from funds held at Treasury. While excluded, at times, in other legal contexts, includes Treasury, Secretary of State, Judicial Department, Legislative Assembly, and the Oregon Public Defense Commission. Agency also is used here to reference those other entities, including public universities, that hold funds at Treasury by virtue of an intergovernmental or other agreement.

Cash Management: Generally includes, but is not limited to, the collection and deposit of, handling or management of, and payment, use, or transfer of moneys of an entity or organization.

Industry Standards or Regulations: Includes any applicable laws, rules, guidelines, policies, or interpretations adopted by a governmental, quasi- governmental entity, or private industry trade association addressing a payment network or channel or otherwise regulating or providing standards related to the movement of moneys between and amongst entities, including but not limited to public or governmental entities.

Oregon Public Funds Laws: The legal provisions outlined primarily in ORS chapters 293 and 295, setting out requirements for the collection, deposit, transfer, administration, and collateralization of Public Funds.

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Public Funds: Those funds under the control or in the custody of a public official by virtue of office. The Oregon Department of Justice has concluded that this includes funds both directly and indirectly controlled or held by a public official.

Third Party Vendor: A vendor with whom an Agency contracts (or intends to contract) for provision of services, including Cash Management services, selected by the Agency, and who is unaffiliated with Treasury for purposes of providing such services.

Policy Statements

1. As the sole banking and Cash Management officer for the state, Treasury acts as the bank for all Agencies, contracting with private banks and financial services providers to deliver a variety of banking and Cash Management services to Agencies, including, but not limited to, primary depository services, electronic funds transfer services, lockbox services, and merchant card acceptance services. While Agencies may not have the underlying need to use all available Cash Management services, if they do elect to use such a service, it must be obtained through Treasury or through the provisions of this policy.

2. At times, Agencies may encounter circumstances that result in the desire to contract directly with a Third Party Vendor for provision of certain Cash Management services. These circumstances may include the following:

    a. An Agency may have programmatic reasons to use a program-focused tool, service,

or product that is well-known and accepted within the industry or program area within which it operates, but that also includes an ancillary banking or Cash Management element (e.g., certain industry-specific licensing or reservation tools, services, or products that also include an online funds collection component).

b. An Agency may have other program-focused procurement or contracting needs for which its finds an ancillary Cash Management element that may be beneficial to its program delivery needs.

c. An Agency also may have direct need for a Cash Management service for which Treasury does not have an existing tool, service, or product. Please note that in such cases, Treasury will work to directly procure a service, working closely with the Agency to identify and address its needs.

3. For the circumstances outlined in paragraphs 2a. and 2b. above, Treasury will oversee a qualification process for Third Party Vendors with which an Agency intends to contract for any Cash Management services, tools, or products. This may include, but is not limited to, services, tools, or products for the purpose of the physical or electronic collection, storage, processing, or transmission of moneys on behalf of the Agency.

    a. Treasury's qualification process will include a detailed Third Party Vendor review that assesses compliance with Oregon Public Funds Law, relevant Industry Standards or Regulations, relevant Treasury operating policies, and any security, interface, or depository requirements for the Cash Management services that are being proposed.

    b. Treasury's review will not address the suitability of a Third Party Vendor's services, tools, or products for Agency-specific applications. Each Agency is responsible for determining whether a Third Party Vendor's services, tools, or products meet its program needs.

4. An Agency that desires to contract with a Third Party Vendor for provision of certain Cash Management services should notify Treasury as soon as the Agency is aware of the need in order to provide for as timely review as possible. Furthermore, the Agency should direct the proposed Third Party Vendor to complete the *Third Party Vendor Qualification Application* form. The Agency and Third Party Vendor should respond timely to any additional questions or information requests from Treasury in order to ensure a timely and accurate assessment of the intended provision of Cash Management services, tools, or products.

    a. If the applicable compliance standards are met by the Third Party Vendor for the specified Cash Management services, tools, or products, the Agency will receive a Third Party Vendor qualification letter from Treasury outlining the specific provisions or contingencies relevant to the Third Party Vendor qualification.

    b. If the applicable compliance standards are NOT met by the Third Party Vendor for the specified Cash Management services, tools, or products, the Agency will be instructed by Treasury to work with the Third Party Vendor to cure or mitigate the areas of non-compliance or to identify an alternate approach to address the need for Cash Management services, tools, or products.

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5. Cash Management services provided through a Treasury contract with a vendor are considered prequalified with respect to Third Party Vendor requirements and are available for Agency use, typically via a tri-party agreement with Treasury, the Agency, and Treasury's vendor.

Exceptions

None.

If an Agency has contracted with a Third Party Vendor for Cash Management services, tools, or products without receiving determination from Treasury as to the qualified status of the Third Party Vendor, the Agency should contact Treasury to determine what steps are necessary to bring the Third Party Vendor service, tool, or product into qualified status. At a minimum, the Third Party Vendor will be asked to submit the *Third Party Vendor Qualification Application* form. If the Third Party Vendor is unable or unwilling to achieve qualification, the Agency is directed to work with Treasury to identify acceptable alternatives.

Failure to Comply

Failure to comply with these requirements may unnecessarily expose an Agency or Agency customers to losses due to insolvency, financial fraud, or negligence and may result in termination of an Agency's or Third Party Vendor's ability to conduct such transactions.

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ADMINISTRATION

Feedback

Your comments are extremely important to improving the effectiveness of this policy. If you would like to comment on the provisions of this policy, you may do so by e-mailing Treasury at customer.solutions@ost.state.or.us. To ensure your comments are received without delay, *please list the policy number and name in your e-mail's subject*. Your comments will be reviewed during the policy revisions process and may result in changes to the policy.

Attachments

Third Party Vendor Qualification Application

Approval Signatures

Step Description	Approver	Date

Cora Parker: Director of Finance	11/2024
Bryan González: Deputy Director of Finance	11/2024

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Status Active PolicyStat ID 17131595

Origination	12/2021
Last Approved	11/2024
Last Revised	11/2024
Next Review	11/2026
Owner	Bryan González: Deputy Director of Finance
Policy Area	Finance

FIN 216: Alternative Methods for Protecting Public Funds

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INTRODUCTION & OVERVIEW

Summary Policy Statement

Pursuant to its designation as the sole banking and cash management officer for the State of Oregon, the Oregon State Treasury ("Treasury") has broad authority to review, establish, and modify policies and procedures for the efficient handling of cash and cash equivalents under the control of all Agencies. Agencies are directed to employ the principles, standards, and related requirements for cash management prescribed by Treasury. This policy establishes how Agencies can use Alternative Methods to protect Public Funds when working with Third Party Vendors.

Purpose and Goals

The purpose of this policy is to clarify the expectations of Agencies, as well as their respective Third Party Vendors, with regard to the use of Alternative Methods to protect Public Funds.

Applicability

The provisions of this policy apply to Agencies as defined within, as well as any other entity, including a public university, that has funds held at Treasury by virtue of an intergovernmental or other agreement.

Authority

ORS 293.875, 295.097 & 352.135(3)

POLICY PROVISIONS

Definitions

Agency (Agencies): Every state officer, board, commission, department, institution, branch or agency of the state government, whose costs are paid wholly or in part from funds held at Treasury. While excluded, at times, in other legal contexts, includes Treasury, Secretary of State, Judicial Department, Legislative Assembly, and the Oregon Public Defense Commission. Agency also is used here to reference those other entities, including public universities, that hold funds at Treasury by virtue of an intergovernmental or other agreement.

Alternative Method(s): A form of collateralization provided by a Third Party Vendor to protect Public Funds held by the Third Party Vendor or the Third Party Vendor's financial institution.

Cash Management: Generally includes, but is not limited to, the collection and deposit of, handling or management of, and payment, use, or transfer of moneys of an entity or organization.

Oregon Public Funds Laws: The legal provisions outlined primarily in ORS chapters 293 and 295, setting out requirements for the collection, deposit, transfer, administration, and collateralization of Public Funds.

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Public Funds: Those funds under the control or in the custody of a public official by virtue of exclusive legal right. The Oregon Department of Justice has concluded that this includes funds both directly and indirectly controlled or held by a public official.

Qualified Depository (Qualified Depositories): A bank or credit union that participates in Treasury's Public Funds Collateralization Program.

Third Party Vendor(s): A vendor with whom an Agency contracts (or intends to contract) for provision of services, including Cash Management services, selected by the Agency, and who is unaffiliated with Treasury for purposes of providing such services.

Policy Statements

1. Oregon Public Funds Laws are designed primarily to protect Public Funds against loss by financial institutions. Pursuant to Oregon Public Funds Laws, Treasury generally requires Agencies to deposit Public Funds in Qualified Depositories. When Treasury reviews a Third Party Vendor for qualification under Treasury policy FIN 214, Treasury will give preference to Third Party Vendors that are able to deposit/hold Public Funds directly at a Qualified Depository on behalf of the Agency.
2. If an Agency is unable to identify a Third Party Vendor that can practicably deposit/hold Public Funds directly at a Qualified Depository on behalf of the Agency, Treasury may qualify a Third Party Vendor that demonstrates the ability and willingness to provide one of the following Alternative Methods:
    a. Cash Deposit. When an Agency receives a cash deposit from a Third Party Vendor as an Alternative Method, the Agency must deposit the cash deposit with Treasury for safekeeping (Agencies should contact Customer Solutions to establish safekeeping

services).

b. Surety Bond. When an Agency accepts a surety bond from a Third Party Vendor as an Alternative Method, the Agency must require use of the Public Funds Collateralization Bond Form attached to this policy.

3. Once Treasury qualifies a Third Party Vendor and authorizes use of an Alternative Method, the Agency must include language in its contract with the Third Party Vendor addressing at least the following items:
    a. The form of Alternative Method authorized for use by the Third Party Vendor.
    b. The initial dollar amount of the Alternative Method.
    c. The Agency's right to increase the dollar amount of the Alternative Method at any time to an amount equal to the amount of Public Funds held by the Third Party Vendor and the Third Party Vendor's financial institution.
    d. The Agency's right to draw against the Alternative Method to offset the amount of Public Funds the Third Party Vendor or the Third Party Vendor's financial institution fails to remit/disburse according to the agreed to remittance/dibursement cycle.
    e. That the Agency will not return/cancel the Alternative Method until the contracted service has ended and all Public Funds held by the Third Party Vendor and the Third Party Vendor's financial institution have been remitted/disbursed/returned according to the terms of the contract.
    f. That failure to comply with the terms related to the use of the Alternative Method constitutes a material default under the contract that may result in immediate termination.
4. When initially determining the dollar amount of an authorized Alternative Method, an Agency must set the dollar amount equal to or greater than the amount of Public Funds that the Third Party Vendor and the Third Party Vendor's financial institution will hold at any time based on a reasonable estimate. (For ease of administration and compliance, Treasury *recommends* that an Agency set the dollar amount of an Alternative Method *greater than* the estimated amount of Public Funds that the Third Party Vendor and the Third Party Vendor's financial institution will hold.)
5. An Agency must monitor the dollar amount of an Alternative Method *each remittance/ disbursement cycle* to determine whether the dollar amount of the Alternative Method remains equal to or greater than the amount of Public Funds held by the Third Party Vendor and the Third Party Vendor's financial institution.
    a. If an Agency determines that the dollar amount of the Alternative Method is no longer equal to or greater than the amount of Public Funds held by the Third Party Vendor and the Third Party Vendor's financial institution, the Agency must immediately require the Third Party Vendor to increase the dollar amount of the Alternative Method so that it is again equal to or greater than the amount of Public Funds held by the Third Party Vendor and the Third Party Vendor's financial institution.
    b. If a Third Party Vendor is unable or unwilling to provide the required increase in the dollar amount of the Alternative Method, the Agency must take action (e.g., require

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more frequent remittance/disbursement) to reduce the amount of Public Funds held by the Third Party Vendor and the Third Party Vendor's financial institution so that the amount of Public Funds held by the Third Party Vendor and the Third Party Vendor's financial institution is equal to or less than the dollar amount of the Alternative Method already provided by the Third Party Vendor.

c. An Agency may reduce the dollar amount of an Alternative Method as long as the dollar amount of the Alternative Method remains at least equal to the amount of Public Funds held by the Third Party Vendor and the Third Party Vendor's financial institution.

6. An Agency that contracts with a Third Party Vendor qualified by Treasury and authorized to use an Alternative Method is solely responsible for ensuring compliance with this policy, including initially determining the dollar amount of the Alternative Method and monitoring/adjusting the dollar amount of the Alternative Method for the duration of the contract.
7. Treasury shall not be responsible for any cost or loss of Public Funds related to an Agency's use of an Alternative Method.
8. If an Agency would like to change the Alternative Method used by a Third Party Vendor qualified by Treasury, the Agency must submit a written request to Treasury. The request must identify both the current and desired Alternative Method, provide a reason for the requested change, and demonstrate the Third Party Vendor's ability and willingness to provide the desired Alternative Method. Treasury has exclusive authority to approve or deny any request.
9. An Agency must immediately notify Treasury if any of the following occurs:
    a. The Agency decides to draw against an Alternative Method to offset an amount of Public Funds a Third Party Vendor or the Third Party Vendor's financial institution fails to remit/disburse according to the agreed to remittance/disbursement cycle.
    b. The Agency determines that a Third Party Vendor is in default for failure to comply with the terms related to the use of an Alternative Method.

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Exceptions

None.

Failure to Comply

Failure to comply with these requirements may unnecessarily expose an Agency or Agency customers to losses due to insolvency, financial fraud, or negligence and may result in termination of an Agency's or Third Party Vendor's ability to conduct such transactions. Also, Agency employees may be held *personally* liable for losses of Public Funds due to failure to comply with these requirements.

RESOURCES

- Cash Management Manual Section XI – Safekeeping

ADMINISTRATION

Feedback

Your comments are extremely important to improving the effectiveness of this policy. If you would like to comment on the provisions of this policy, you may do so by e-mailing Treasury at customer.solutions@ost.state.or.us. To ensure your comments are received without delay, *please list the policy number and name in your e-mail's subject*. Your comments will be reviewed during the policy revisions process and may result in changes to the policy.

Attachments

Public Funds Collateralization Bond Form

Approval Signatures

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Step Description	Approver	Date
	Cora Parker: Director of Finance	11/2024
	Bryan González: Deputy Director of Finance	11/2024

Chapter 295 — Depositories of Public Funds and Securities

2025 EDITION

DEPOSITORIES OF PUBLIC FUNDS AND SECURITIES

PUBLIC FINANCIAL ADMINISTRATION

TABLE OF CONTENTS

295.001 Definitions for ORS 295.001 to 295.108
295.002 Deposit of public funds; exceptions; limitation on personal liability
295.004 Conditions for deposit of funds in excess of specified amounts
295.006 Public official filings with State Treasurer; rules
295.007 Conditions for acting as custodian; rules
295.008 Qualified depositories
295.012 State Treasurer rule setting maximum liability for qualified credit union depositories
295.013 Custodian's receipt; duties of custodian; rules
295.015 Maintenance of securities by qualified depository
295.018 Increase in required collateral of qualified depository; notifications; failure to increase collateral
295.022 Collateral not required for deferred compensation funds
295.031 Notice to public officials regarding adequacy of collateral
295.034 Withdrawal of inadequately collateralized funds
295.037 Distribution of collateral after loss in qualified depository
295.038 Assessment against collateral of qualified depositories
295.039 State Treasurer acceptance of moneys for purposes of administering ORS 295.038
295.041 Subrogation rights of State Treasurer
295.046 Limitation on acceptance of public funds from single public official; exceptions
295.048 Limitations on aggregate uninsured public funds deposits; notice; exceptions
295.053 Custodian duties when qualified depository ceases holding uninsured public funds; securities
295.056 Liability of public officials for loss of public funds
295.061 Treasurer reports; filing; notification of changes; failure to file reports; rules
295.071 Investigation by regulatory bodies other than State Treasurer
295.073 Report to State Treasurer of actions that reduce net worth of depository
295.081 Time deposits
295.084 State Treasurer designation of depositories
295.091 Geographic preference in selecting depositories; apportioning funds; interest
295.093 Depositing moneys with treasurer of public body
295.097 State agency agreements with third parties; State Treasurer approval; rules
295.098 Public body agreements with third parties; alternative methods
295.101 Public funds not subject to ORS 295.001 to 295.108
295.103 Certain moneys related to motor carriers not public funds
295.106 State Treasurer charges; expenses
295.108 State Treasurer rules; form of report
295.195 Deposit of funds in foreign country; effect on collateral; report to Legislative Assembly
295.205 Accounts in financial institutions outside Oregon; conditions; rules

295.001 Definitions for ORS 295.001 to 295.108. As used in ORS 295.001 to 295.108, unless the context requires otherwise:

(1) "Adequately capitalized" means a qualified depository that is classified as adequately capitalized by the depository's primary federal regulatory authority.

(2) "Bank" means an insured institution or trust company.

(3) "Business day" means a day other than a federal or State of Oregon legal holiday or a day other than a day on which offices of the State of Oregon are otherwise authorized by law to remain closed.

(4) "Closed depository" means a qualified depository that is subject to a loss.

(5) "Collateral" means securities, or a letter of credit or similar instrument intended to ensure payment, that is approved by the State Treasurer to be used as security to ensure the obligations of a qualified depository under this chapter.

(6) "Collateral agreement" means an agreement entered into between a qualified depository and the State Treasurer under which the qualified depository agrees to provide collateral to secure its deposits of public funds and to comply with the provisions of this chapter and such other provisions as the State Treasurer determines are required to adequately protect public funds from loss.

(7) "Credit union" means a credit union as defined in ORS 723.006 or a federal credit union if the shares and deposits of the credit union or federal credit union are insured by the National Credit Union Administration.

(8) "Custodian" means a financial institution that meets the requirements of ORS 295.007.

(9) "Custodian's receipt" or "receipt" means a document issued by a custodian that describes the securities that a qualified depository deposited with the custodian to secure public fund deposits.

(10) "Depository" means a bank or a credit union that is headquartered or has a branch office located in Oregon.

(11) "Financial institution outside this state" means a financial institution, as defined in ORS 706.008, that is not an extranational institution, as defined in ORS 706.008, and is not a depository, as defined in this section.

(12) "Insured institution" means an insured institution as defined in ORS 706.008.

(13) "Loss" means the issuance of an order by a regulatory or supervisory authority or a court of competent jurisdiction that:

(a) Restrains a qualified depository from making payments of deposit liabilities; or

(b) Appoints a receiver for a qualified depository.

(14) "Maximum liability" means a sum equal to 10 percent of the greater of:

(a) All uninsured public funds deposits held by a qualified depository, as shown on the date of the depository's most recent treasurer report; or

(b) The average of the balances of uninsured public funds deposits on the last two immediately preceding treasurer reports.

(15) "Minimum collateral requirement" for a qualified depository on any given date means a sum equal to:

(a) For a well capitalized qualified depository that the State Treasurer has not required to increase the qualified depository's collateral pursuant to ORS 295.018, 10 percent of the greatest of:

(A) All uninsured public funds held by the qualified depository, as shown on the most recent treasurer report;

(B) The average of the balances of uninsured public funds held by the qualified depository, as shown on the last two

immediately preceding treasurer reports; or

(C) An amount otherwise prescribed in ORS 295.001 to 295.108.

(b) For a well capitalized qualified depository that the State Treasurer required to increase the depository's collateral pursuant to ORS 295.018, the percentage the State Treasurer required pursuant to ORS 295.018 multiplied by the greatest of:

(A) All uninsured public funds held by the qualified depository, as shown on the most recent treasurer report;

(B) The average of the balances of uninsured public funds held by the qualified depository, as shown on the last two immediately preceding treasurer reports; or

(C) An amount otherwise prescribed in ORS 295.001 to 295.108.

(c) For an adequately capitalized qualified depository or an undercapitalized qualified depository, 110 percent of the greater of:

(A) All uninsured public funds held by the qualified depository; or

(B) The average of the balances of uninsured public funds held by the qualified depository, as shown on the last two immediately preceding treasurer reports.

(16) "Net worth" means:

(a) For a qualified depository that is a bank that does not have a community bank leverage ratio framework election in effect as of the quarter-end report date, total capital as shown on the immediately preceding report of condition and income, or such other substantial equivalent of total capital that the State Treasurer adopts in the treasurer report required by ORS 295.061;

(b) For a qualified depository that is a bank that has a community bank leverage ratio framework election in effect as of the quarter-end report date, tier 1 capital as shown on the immediately preceding report of condition and income, or such other substantial equivalent of tier 1 capital that the State Treasurer adopts in the treasurer report required by ORS 295.061; or

(c) For a qualified depository that is a credit union, total net worth as shown on the immediately preceding report of condition and income, or such other substantial equivalent of total net worth that the State Treasurer adopts in the treasurer report required by ORS 295.061.

(17) "Pledge agreement" means a written agreement among a qualified depository, the State Treasurer and a custodian that pledges the securities the depository deposits with the custodian to secure deposits of uninsured public funds that the depository holds. The board of directors or loan committee of the depository must approve the agreement and must continuously maintain the agreement as a written record of the depository.

(18) "Public body" has the meaning given that term in ORS 174.109.

(19) "Public funds" or "funds" means funds that a public official has custody of or has control of by virtue of the exclusive legal right of a public body conferred through contract or by law to direct the collection, use or transfer of moneys payable to, belonging to or collected for the public body, while held by a third party such that the failure of the financial institution in which such moneys are deposited would constitute a loss of the public body's money.

(20) "Public official" means an officer or employee of a public body.

(21) "Qualified depository" means a depository that meets the requirements of ORS 295.008.

(22) "Report of condition and income" means the quarterly report a qualified depository submits to the depository's primary federal regulatory authority.

(23) "Security" or "securities" means:

(a) Obligations of the United States, including those of agencies and instrumentalities of the United States, and of government sponsored enterprises;

(b) Obligations of the International Bank for Reconstruction and Development;

(c) Bonds of a state of the United States that:

(A) Are rated in one of the four highest grades by a recognized investment service organization that has engaged regularly and continuously for a period of not less than 10 years in rating state and municipal bonds; or

(B) Having once been rated in accordance with subparagraph (A) of this paragraph, are ruled to be eligible securities for the purposes of ORS 295.001 to 295.108, notwithstanding the loss of the rating;

(d) Bonds of a county, city, school district, port district or other public body in the United States that are payable from or secured by ad valorem taxes and that meet the rating requirement or are ruled to be eligible securities as provided in paragraph (c) of this subsection;

(e) Bonds of a county, city, school district, port district or other public body that are issued pursuant to the Constitution or statutes of the State of Oregon or the charter or ordinances of a county or city within the State of Oregon, if the bonds meet the rating requirement or are ruled to be eligible securities as provided in paragraph (c) of this subsection;

(f) With the permission of the State Treasurer and in accordance with rules the State Treasurer adopts, loans made to a county, city, school district, port district or other public body in the State of Oregon, if the borrower has not defaulted with respect to the payment of principal or interest on any of the borrower's loans within the preceding 10 years or during the period of the borrower's existence if the borrower has existed for less than 10 years;

(g) With the permission of the State Treasurer and in accordance with rules the State Treasurer adopts, bond anticipation notes that an authority issues, sells or assumes under ORS 441.560;

(h) Bonds, notes, letters of credit issued not as assurance of payment or performance but as an investment or other securities or evidence of indebtedness constituting the direct and general obligation of a federal home loan bank or Federal Reserve bank;

(i) Debt obligations of domestic corporations that are rated in one of the three highest grades by a recognized investment service organization that has engaged regularly and continuously for a period of not less than 10 years in rating corporate debt obligations; and

(j) Collateralized mortgage obligations and real estate mortgage investment conduits that are rated in one of the two highest grades by a recognized investment service organization that has engaged regularly and continuously for a period of not less than 10 years in rating corporate debt obligations.

(24) "State agency" means any officer, board, commission, department, division or institution of state government as that term is defined in ORS 174.111.

(25) "Treasurer report" means a written report that an officer of a qualified depository that holds uninsured public funds deposits has signed or authenticated and that sets forth as of the close of business on a specified date:

(a) The total amount of uninsured public funds on deposit with the qualified depository;

(b) The total amount of public funds on deposit with the qualified depository;

(c) The net worth of the qualified depository;

(d) The amount and nature of collateral provided; and

(e) The identity of the qualified depository's custodian, if applicable.

(26) "Treasurer report due date" means a date not less than 10 business days after the date a qualified depository's report of condition and income is due to be submitted.

(27) "Trust company" means a trust company as defined in ORS 706.008.

(28) "Undercapitalized" means a qualified depository that is classified as undercapitalized, significantly undercapitalized or critically undercapitalized by the qualified depository's primary federal regulatory authority.

(29) (a) "Uninsured public funds" or "uninsured public funds deposits" means public funds deposited in a depository that exceed the amounts insured or guaranteed as described in ORS 295.002 (1)(b).

(b) "Uninsured public funds" or "uninsured public funds deposits" does not include public funds deposited in a certificate of deposit, time deposit or insured deposit account under ORS 295.004.

(30) "Value" means the current market value of securities.

(31) "Well capitalized" means a qualified depository that is classified as well capitalized by the qualified depository's primary federal regulatory authority.

[Formerly 295.005; 2009 c.821 §1; 2010 c.101 §1; 2011 c.477 §§3,4; 2017 c.17 §25; 2019 c.587 §1; 2025 c.96 §2]

295.002 Deposit of public funds; exceptions; limitation on personal liability. (1) A public official shall deposit, or require the deposit of, all public funds in the public official's custody or control in one or more qualified depositories, except as follows:

(a) A public official may retain undeposited such reasonable cash working fund as is fixed by the public body for which the public official acts.

(b) A public official may deposit public funds in a depository that is not a qualified depository if the amount of public funds deposited is fully insured by the Federal Deposit Insurance Corporation or the National Credit Union Administration and, for any amount deposited in excess of the insured amount, the excess amount is insured or guaranteed by private deposit insurance or a deposit guaranty bond issued by an insurance company rated A- or better by a recognized insurance rating service.

(2) Compliance with ORS 295.001 to 295.108 relieves the public official of personal liability for the loss of the public funds in the public official's custody or control.

[Formerly 295.025; 2010 c.101 §2; 2019 c.587 §2]

295.004 Conditions for deposit of funds in excess of specified amounts. (1) A public official may deposit public funds in a depository that is not a qualified depository in an amount in excess of the amount allowed in ORS 295.002 (1)(b) if the depository participates in a program through which:

(a) The depository arranges to deposit the funds into one or more certificates of deposit or time deposits issued by other financial institutions in the United States;

(b) Each certificate of deposit or time deposit is fully insured by the Federal Deposit Insurance Corporation or the National Credit Union Administration;

(c) The depository administers the funds on behalf of the public official; and

(d) Other financial institutions that participate in the program place funds into the depository in an amount at least equal to the amount the public official deposited into the depository for purposes of the program.

(2) A public official may deposit public funds in a depository that is not a qualified depository in an amount in excess of the amount allowed in ORS

295.002 (1)(b) if the depository participates in a program that meets the following conditions:

(a) On or after the date that the funds are received, the depository:

(A) Arranges for the redeposit of the funds into one or more insured deposit accounts in other financial institutions in the United States; and

(B) Administers the funds on behalf of the public official;

(b) The full amount of the funds redeposited by the depository into deposit accounts in other financial institutions, together with any interest accrued on deposited funds, is insured by the Federal Deposit Insurance Corporation or the National Credit Union Administration; and

(c) On the same date that the funds are redeposited under this subsection, the depository receives an amount of deposits from customers of other financial institutions that are at least equal to the amount of the funds redeposited by the depository.

(3) Until the depository places public funds into one or more certificates of deposit or time deposits as provided in subsection (1) of this section or places public funds into insured deposit accounts as provided in subsection (2) of this section, any uninsured public funds that the depository holds pending placement must be collateralized as provided in ORS 295.001 to 295.108 for other uninsured public funds deposits.

(4) (a) The provisions of ORS 295.006, 295.013, 295.015, 295.018, 295.037 and 295.038 do not apply to depositories that arrange to deposit public funds in accordance with the programs described in subsections (1) and (2) of this section.

(b) The certificate of deposit, time deposit or insured deposit in which a public official placed public funds under this section may be issued by a financial institution outside this state.

[Formerly 295.027; 2009 c.821 §2; 2010 c.101 §3; 2011 c.477 §§1,2; 2019 c.587 §3]

295.005 [1967 c.451 §1; 1973 c.157 §4; 1973 c.288 §2; 1973 c.378 §1; 1973 c.797 §426; 1975 c.515 §8; 1981 c.440 §2; 1983 c.104 §3; 1983 c.456 §4; 1985 c.439 §1; 1985 c.565 §51; 1987 c.524 §1; 1989 c.536 §1; 1991 c.352 §6; 1993 c.74 §1; 1993 c.229 §23; 1993 c.318 §12; 1997 c.631 §447; 1999 c.311 §1; 1999 c.412 §3; 2003 c.195 §17; 2003 c.405 §2; 2005 c.443 §§32,32a; 2007 c.783 §123; 2007 c.871 §15a; renumbered 295.001 in 2007]

295.010 [Amended by 1953 c.352 §3; 1957 c.172 §1; 1965 c.169 §1; repealed by 1967 c.451 §32]

295.011 [2005 c.112 §4; 2005 c.443 §32c; 2007 c.783 §124; renumbered 295.101 in 2007]

295.012 State Treasurer rule setting maximum liability for qualified credit union depositories. For any period of time during which fewer than 10 credit unions are qualified depositories, the State Treasurer, notwithstanding ORS 295.001 (14), by rule may set the maximum liability for a credit union that holds uninsured public funds at 20 percent of the greater of:

(1) All uninsured public funds deposits the credit union holds, as shown on the date of the credit union's most recent treasurer's report; or

(2) The average of the balances of all uninsured public funds deposits the credit union holds, as shown on the credit union's last two immediately preceding treasurer reports.

[2010 c.101 §13b; 2019 c.587 §7]

295.013 Custodian's receipt; duties of custodian; rules. (1) When a custodian receives a pledge or release of securities from a qualified depository, and after receiving the approval of the State Treasurer, the custodian shall issue to the State Treasurer a custodian's receipt that describes the securities. The custodian also shall issue a copy of the receipt to the depository.

(2) A custodian shall:

(a) Maintain an accurate inventory of the securities of each qualified depository described in the custodian's receipts that the custodian issues to the State Treasurer and

adjust the inventory to reflect pledges or releases of securities that the custodian previously inventoried.

(b) Appraise the value of the securities added to and released from the qualified depository's inventory and appraise the value of the depository's entire inventory on the last day of each month and at such other times as the State Treasurer directs.

(c) Provide reports to the State Treasurer that describe the type and value of each security pledged by each qualified depository and any additional information required by the State Treasurer.

(3) The State Treasurer, by rule or through individual pledge agreements, may specify:

(a) Additional information that must be reported related to the securities pledged;

(b) The frequency with which reports required under this section must be provided; and

(c) Requirements for distribution of reports to qualified depositories or other persons.

[Formerly 295.035; 2009 c.821 §5; 2010 c.101 §6; 2017 c.500 §2; 2019 c.587 §9]

295.015 Maintenance of securities by qualified depository. Except as provided in ORS 295.018:

(1) (a) Throughout the period that a qualified depository possesses uninsured public funds deposits, the depository shall maintain collateral, at the depository's own expense, that has a value at least equal to the depository's minimum collateral requirement and as otherwise prescribed in ORS 295.001 to 295.108. If the collateral consists of securities, the depository shall deposit the securities with the depository's custodian. The depository and custodian shall identify the securities in their respective records as security for public funds deposited in accordance with ORS 295.001 to 295.108.

(b) For purposes of this section, when pledged as collateral for public funds deposits, loans described in ORS 295.001 (23)(f) must be discounted to 75 percent of the unpaid principal balance owing on the loan from time to time, or to a lower value that the State Treasurer determines from time to time.

(c) A bond anticipation note that is pledged as collateral for public funds deposits and for which there is no readily determinable market value must be discounted to 75 percent of the unpaid principal balance owing on the note from time to time, or to a lower value that the State Treasurer determines from time to time.

(2) A qualified depository may deposit other eligible securities with the depository's custodian and release from deposit securities that the depository pledged to secure deposits of public funds if the remaining securities have a value not less than the depository's minimum collateral requirement. The State Treasurer shall execute releases and surrender custodian's receipts that are appropriate to effect pledges and releases of matured and excess pledged securities.

(3) If a qualified depository's minimum collateral requirement increases because the depository ceases to be a well capitalized depository as reflected in the depository's last treasurer report, call report or other public filing, or if the depository receives notice from the State Treasurer that its minimum collateral requirement is increased, the depository shall:

(a) Within three business days after the date on which the qualified depository's minimum collateral requirement increases, the depository shall notify the depository's custodian and the State Treasurer in writing that the depository's minimum collateral requirement has increased, setting forth the depository's new minimum collateral requirement and the depository's plan for increasing the depository's pledged collateral to the minimum collateral requirement; and

(b) Within five business days after the date on which the qualified depository's minimum

collateral requirement increases, or within a longer period approved by the State Treasurer in coordination with the Department of Consumer and Business Services, the depository shall, in accordance with the plan approved by the State Treasurer, provide additional collateral sufficient to increase the total value of the depository's securities pledged as collateral for public funds deposits to the depository's new minimum collateral requirement.

(4) If a qualified depository's minimum collateral requirement decreases because the depository becomes well capitalized, or because the State Treasurer no longer requires the depository to pledge additional collateral under ORS 295.018, the depository may:

(a) Notify the qualified depository's custodian, if any, and the State Treasurer in writing that the depository's minimum collateral requirement has decreased, setting forth the depository's new minimum collateral requirement; and

(b) With the written approval of the State Treasurer, reduce the value of the qualified depository's collateral including a release from the depository's custodian of those securities that exceed the depository's new minimum collateral requirement.

(5) The State Treasurer shall act upon requests for releases of securities under subsections (2) and (4)(b) of this section within three business days after receiving each request.

[1967 c.451 §2; 1975 c.515 §3; 2007 c.871 §17; 2009 c.821 §6; 2010 c.101 §7; 2017 c.500 §3; 2019 c.587 §10]

295.018 Increase in required collateral of qualified depository; notifications; failure to increase collateral. (1)(a) Throughout the period that a qualified depository possesses uninsured public funds deposits, the State Treasurer may require the depository to maintain collateral, including securities on deposit with the depository's custodians, that has a value not less than 110 percent of the greater of:

(A) All uninsured public funds the qualified depository holds; or

(B) The average of the balances of uninsured public funds the qualified depository holds, as shown on the last two immediately preceding treasurer reports.

(b) In consultation with the Director of the Department of Consumer and Business Services, the State Treasurer may permit a qualified depository to increase the depository's collateral as required under paragraph (a) of this subsection over a period of time the State Treasurer specifies or may require a qualified depository to increase the depository's collateral to an amount that is less than the amount specified in paragraph (a) of this subsection.

(2) The State Treasurer shall order an increase in collateral under subsection (1) of this section if the director so advises. If the qualified depository is a national bank, a federally chartered savings bank, a savings and loan association or a federal credit union, in giving advice to the State Treasurer the director may rely exclusively on information that the federal regulatory agencies and the bank, savings bank, association or federal credit union provide to the director on forms the director prescribes. As a condition of being analyzed and reviewed by the director, a national bank, a federally chartered savings bank, a savings and loan association or a federal credit union shall agree and consent to provide the director with accurate, pertinent and timely information.

(3) If the State Treasurer orders a qualified depository to increase the depository's collateral under subsection (1) of this section, the State Treasurer shall give notice of the order to the director and the depository's custodians within one business day after issuing the order.

(4) The director's failure to inform the State Treasurer of the condition of any qualified depository does not give a public depositor any right or impose liability on the director. The

State Treasurer is not liable to a public depositor or to a qualified depository for increasing or not increasing the collateral requirement as authorized in subsection (1) of this section.

(5) A qualified depository that the State Treasurer notifies of the increased collateral requirement shall:

(a) Within three business days after receiving the notice, submit to the State Treasurer the qualified depository's plan to increase the depository's collateral to the level the State Treasurer requires under subsection (1) of this section; and

(b) Within five business days after receiving approval of the plan the qualified depository submitted under paragraph (a) of this subsection, or within a longer period approved by the State Treasurer in coordination with the Department of Consumer and Business Services, increase the depository's collateral to the level the State Treasurer requires under subsection (1) of this section.

(6) (a) If the qualified depository does not increase the depository's collateral to the level the State Treasurer requires under subsection (1) of this section within the applicable period under subsection (5)(b) of this section, the State Treasurer shall immediately send, to each public official who has notified the State Treasurer that the public official has public funds on deposit in that depository, notice that the depository has failed to comply.

(b) If, after giving notice as required by paragraph (a) of this subsection, the State Treasurer receives notice that the qualified depository has complied with the increased collateral requirements, the State Treasurer shall notify each public official that the State Treasurer notified under paragraph (a) of this subsection that the depository has complied.

(7) A qualified depository that does not comply with subsection (5) of this section may not accept additional uninsured public funds deposits.

(8) Records the State Treasurer receives or compiles that contain the collateralization requirement for a depository and the amount of collateral a custodian holds are exempt from public disclosure unless the public interest requires disclosure in the particular instance.

(9) The State Treasurer may require a qualified depository that must increase the depository's collateral under subsection (5) of this section to file the reports required under ORS 295.061 (3).

[1975 c.515 §2; 1981 c.440 §1; 1985 c.762 §182; 1987 c.373 §§28a,28b; 1987 c.554 §1; 1989 c.171 §41; 1991 c.327 §1; 2007 c.871 §18; 2009 c.821 §7; 2010 c.101 §8; 2017 c.500 §4; 2019 c.587 §11]

295.022 Collateral not required for deferred compensation funds. Notwithstanding any other provision of this chapter, when a depository receives moneys of the Deferred Compensation Fund established under ORS 243.411 from the state for deposit or investment, the depository shall not have to maintain the collateral required under this chapter for those deferred compensation moneys.

[1977 c.721 §15; 1997 c.179 §27; 2019 c.587 §12]

295.025 [1967 c.451 §3; 1973 c.288 §3; 1999 c.48 §1; 2003 c.405 §6; 2007 c.871 §19; renumbered 295.002 in 2007]

295.027 [2005 c.58 §1; 2007 c.871 §20; renumbered 295.004 in 2007]

295.031 Notice to public officials regarding adequacy of collateral. (1) Within three business days after the State Treasurer determines that a qualified depository has failed to increase the value of the depository's collateral within the time required under ORS 295.015 (3)(b) or receives information from the Director of the Department of Consumer and Business Services or other sources under ORS 295.071 or 295.073, or otherwise receives information that indicates that a qualified depository has failed to pledge adequate securities with the depository's custodian or otherwise provided adequate collateral, the State Treasurer shall send written notice of the failure to each public official who has uninsured public funds on deposit in the depository.

(2) Within five business days after the State Treasurer receives a receipt from a custodian pursuant to ORS 295.013 (1) that indicates that a qualified depository has pledged adequate securities with the depository's custodian or satisfactory evidence of other adequate collateral, the State Treasurer shall send written notice to each public official who was notified under subsection (1) of this section stating that the depository has adequate collateral.

[2007 c.871 §2; 2009 c.821 §8; 2010 c.101 §9; 2017 c.500 §5; 2019 c.587 §13]

295.034 Withdrawal of inadequately collateralized funds. (1) Within 15 business days after a public official receives a notice from the State Treasurer pursuant to ORS 295.018 (6)(a), 295.031 (1) or 295.061 (4)(a), the public official shall withdraw from the qualified depository to which the notice applies all uninsured public funds deposits.

(2) If a public official receives a notice from the State Treasurer pursuant to ORS 295.018 (6)(a), 295.031 (1) or 295.061 (4)(a), beginning 15 business days after the public official receives the notice, the public official may not deposit into the qualified depository to which the notice applies any public funds that, as a result of the deposit, would be uninsured public funds deposits. The prohibition on deposits continues until the public official receives notice under ORS 295.018 (6)(b), 295.031 (2) or 295.061 (4)(b) indicating that the depository is in compliance with ORS 295.013, 295.018 or 295.061, as applicable.

(3) Except as required by any applicable law or regulation, a qualified depository may not impose an early withdrawal penalty or a forfeiture of interest with respect to a withdrawal that a public official makes pursuant to this section.

[2007 c.871 §3; 2009 c.821 §9; 2010 c.101 §10; 2019 c.587 §14]

295.035 [1967 c.451 §4; 2007 c.871 §21; renumbered 295.013 in 2007]

295.037 Distribution of collateral after loss in qualified depository. (1) The provision of collateral, including the deposit of securities by a qualified depository with its custodian pursuant to ORS 295.001 to 295.108, constitutes consent by the depository to the disposition of the securities in accordance with this section.

(2) When a loss has occurred in a qualified depository, the depository shall as soon as possible make payment to the proper public officials of all funds subject to the loss, pursuant to the following procedures:

(a) Immediately upon occurrence of the loss, the State Treasurer shall exercise all of the State Treasurer's rights in the collateral, including without limitation taking possession of any securities segregated as collateral for uninsured public funds deposits held by the closed depository and beginning to collect payment from as much of the collateral, including without limitation the liquidation of securities, as the State Treasurer estimates is necessary, based upon the most recent information available to the State Treasurer on the amount of uninsured public funds deposits held by the closed depository, for distribution of the proceeds among public officials entitled to the proceeds as provided in this section.

(b) The Director of the Department of Consumer and Business Services or the receiver for the closed depository shall, within 20 days after the issuance of a restraining order or taking possession of any qualified depository, ascertain the amount of public funds on deposit in the depository as disclosed by its records and the amount of the public funds covered by deposit insurance or deposit guaranty bonds and certify the amounts to the State Treasurer and to each public official who has public funds on deposit in the depository.

(c) Each public official who has uninsured public funds on deposit in the qualified depository shall, within 10 days after receipt of the

certification from the Director of the Department of Consumer and Business Services or the receiver, furnish to the State Treasurer verified statements of the uninsured public funds that the public official has on deposit in the depository.

(3) Upon receipt of the certification from the Director of the Department of Consumer and Business Services or the receiver and the verified statements from the public officials who have uninsured public funds on deposit in the qualified depository, the State Treasurer shall ascertain and fix the amount of public funds on deposit in the depository, plus interest to the date the funds are distributed to the public official at the rate the depository agreed to pay on the funds, minus any amount covered by deposit insurance or deposit guaranty bonds.

[2007 c.871 §4; 2009 c.821 §10; 2019 c.587 §15]

295.038 Assessment against collateral of qualified depositories. (1) After making the calculation described in ORS 295.037, the State Treasurer shall assess the amount of uninsured public funds against a collateral pool that consists of collateral provided by all other qualified depositories of the same type, either bank or credit union, as the closed depository as follows:

(a) First, against the closed depository, to the extent of the full value of the proceeds from the State Treasurer's liquidation of the closed depository's collateral under ORS 295.037, plus the State Treasurer's estimate of the amount of proceeds the State Treasurer expects to receive from collateral the State Treasurer has not yet liquidated; and

(b) Second, against all other qualified depositories on a proportionate basis determined as provided in subsection (2) of this section. The amount the State Treasurer assesses against another qualified depository may not exceed the depository's maximum liability.

(2) For purposes of subsection (1) of this section, the State Treasurer shall determine the proportionate share of each of the other qualified depositories in the collateral pool by:

(a) Averaging, for each qualified depository, the total amounts of all uninsured public funds deposits the depository reported on the depository's last two treasurer reports;

(b) Averaging the aggregate total amounts of all uninsured public funds deposits all qualified depositories in the pool reported on the depositories' last two treasurer reports; and

(c) Dividing the result of the calculation performed under paragraph (a) of this subsection by the results of the calculation performed under paragraph (b) of this subsection.

(3) For purposes of the calculations set forth in subsections (1) and (2) of this section, "qualified depository" refers only to qualified depositories that are of the same type as the closed depository.

(4) Notwithstanding the assessment provisions of subsection (1) of this section, the State Treasurer shall assess the amount of a public official's uninsured public funds deposits only against the closed depository and not against other qualified depositories, if the public official:

(a) Received appropriate notice about the closed depository from the State Treasurer under ORS 295.018 (6)(a) or 295.031 (1) and did not comply with ORS 295.034; or

(b) Failed to timely comply with the requirements of ORS 295.006 and, as a result of failing to timely comply, did not receive appropriate notice about the closed depository from the State Treasurer under ORS 295.018 (6)(a), 295.031 (1) or 295.061 (4)(a).

(5) Assessments the State Treasurer makes against the closed depository are payable immediately from the proceeds of the collateral delivered to the State Treasurer. Assessments the State Treasurer makes against other qualified depositories are payable on the fifth business day

following demand. If a qualified depository fails to pay an assessment, the State Treasurer shall exercise the State Treasurer's legal rights to acquire payment under the collateral, including taking possession of and liquidating any securities the depository segregated as collateral, in the amount necessary to satisfy the depository's assessment.

(6) The State Treasurer shall distribute the amounts the State Treasurer receives from the assessments among the public officials entitled to the proceeds in proportion to the public officials' respective claims, to the extent that the proceeds do not exceed the total amount of uninsured public funds deposits that the public officials claim.

(7) If, after all other available sources are applied, the amounts the State Treasurer receives from the assessments are inadequate to meet the total claims of the public officials to uninsured public funds deposits, the public officials may make claims against the closed depository as general creditors, but not against a qualified depository other than the closed depository.

(8) (a) If the final amount of proceeds the State Treasurer receives from the liquidation of collateral from a closed depository exceeds the amount of the assessment against the closed depository under subsection (1)(a) of this section, the State Treasurer shall pay the amount of the excess to the closed depository.

(b) If the final amount of proceeds the State Treasurer receives from the liquidation of collateral from other qualified depositories exceeds the amount of the assessment against the other qualified depositories in the applicable pool under subsection (1)(b) of this section, the State Treasurer shall pay the excess to the other qualified depositories in the pool in proportion to the amounts the other qualified depositories in the pool paid in assessments to the State Treasurer.

(c) If the final amount of proceeds the State Treasurer receives from the liquidation of collateral from a qualified depository other than the closed depository under subsection (5) of this section exceeds the amount of the assessment against the depository, the State Treasurer shall pay the excess to the depository.

(9) The prohibition on transfers of assets set forth in ORS 711.410 does not apply to assessments, payments, transfers or sales of securities made in accordance with this section.

[2010 c.101 §12; 2019 c.587 §16]

295.039 State Treasurer acceptance of moneys for purposes of administering ORS 295.038. (1) The State Treasurer may accept moneys from any public or private source for the purpose of paying initial or continuing expenses related to administering the provisions of ORS 295.038.

(2) The State Treasurer shall deposit moneys the State Treasurer receives under this section into the Miscellaneous Receipts Account established for the State Treasurer in the General Fund. Notwithstanding the provisions of ORS 295.106, moneys the State Treasurer receives under this section are continuously appropriated to the State Treasurer for the purpose of paying the State Treasurer's initial or continuing expenses related to administering ORS 295.038. The State Treasurer shall expend the moneys in accordance with the terms and conditions upon which the moneys were made available.

[2010 c.101 §13; 2011 c.667 §1; 2019 c.587 §17]

295.041 Subrogation rights of State Treasurer. When the State Treasurer distributes the proceeds of assessments and liquidated collateral to a public official under ORS 295.038, the State Treasurer is subrogated to all of the public official's right, title and interest against the closed depository, and shares in any distribution of the closed depository's assets ratably with other depositors. Sums received from a distribution must be paid to the public official to the extent of any unpaid net deposit liability. The State Treasurer shall pay the remaining balance to the qualified depositories in the pool against which the assessments were made, pro rata in proportion to the

assessments each qualified depository paid. However, the closed depository may not share in a distribution of the balance remaining. The State Treasurer may charge expenses that the State Treasurer incurs in enforcing the State Treasurer's rights under this section as provided in ORS 295.106. The State Treasurer shall submit a claim for expenses to the closed depository, and if the charges are thereafter paid to the State Treasurer, they shall be treated as a liquidation expense of the closed depository.

[2007 c.871 §6; 2009 c.821 §11; 2010 c.101 §14; 2019 c.587 §18]

295.046 Limitation on acceptance of public funds from single public official; exceptions. (1) A qualified depository may not accept a deposit of public funds if the deposit would cause the aggregate of public funds deposits that any one public official makes in the depository to exceed at any time the depository's net worth. If a qualified depository's net worth is reduced, the depository may allow public funds on deposit in excess of the reduced net worth to remain if the depository deposits with the depository's custodian eligible securities, or provides other collateral, valued at market value in an amount at least equal to the amount of the excess public funds deposits. If the additional securities required by this section are not deposited with the custodian, or other collateral is not provided, the depository shall permit the public official to withdraw deposits prior to maturity, including accrued interest, in accordance with applicable statutes and governmental regulations.

(2) The limitations of subsection (1) of this section do not apply to public funds deposits a qualified depository holds in a certificate of deposit, time deposit or insured deposit account under ORS 295.004.

[2007 c.871 §10; 2009 c.821 §12; 2010 c.101 §15; 2011 c.477 §§5,6; 2013 c.1 §26; 2019 c.587 §19]

295.048 Limitations on aggregate uninsured public funds deposits; notice; exceptions. (1) Notwithstanding ORS 295.046, a qualified depository may not permit the aggregate of uninsured public funds deposits on deposit with the depository from all public officials to exceed at any time the least of:

(a) 100 percent of the value of the qualified depository's net worth, if the depository is an undercapitalized depository;

(b) 150 percent of the value of the qualified depository's net worth, if the depository is an adequately capitalized depository;

(c) 200 percent of the value of the qualified depository's net worth, if the depository is a well capitalized depository;

(d) For a qualified depository that is a bank, 30 percent of the total aggregate uninsured public funds deposits of all public officials in all qualified depositories that are banks as reported in the most recent notice the depository received from the State Treasurer; or

(e) For a qualified depository that is a credit union, 30 percent of the total aggregate uninsured public funds deposits of all public officials in all qualified depositories that are credit unions as reported in the most recent notice the depository received from the State Treasurer.

(2) The State Treasurer shall notify each qualified depository, or the depository's custodian if required by an individual pledge agreement or by rule, of the total aggregate uninsured public funds deposits of all public officials in all qualified depositories, based on the most recently submitted treasurer reports. The State Treasurer shall give the notification required by this subsection by the last day of the month in which the depositories are required to submit a treasurer report.

(3) If a qualified depository's aggregate of uninsured public funds deposits exceeds the amount set forth in subsection (1) of this section, the depository shall, within three business days after receiving notice from the State Treasurer, cease accepting deposits of uninsured public funds.

(4) Notwithstanding subsections (1) and (3) of this section:

(a) A qualified depository may accept and hold uninsured public funds deposits in excess of the limits specified in subsection (1) of this section if the State Treasurer, upon good cause shown, approves the depository's request to hold uninsured public funds in excess of the limits specified in subsection (1) of this section for a period not exceeding 90 days and eligible collateral is provided in an amount at least equal to the amount by which the uninsured public funds deposits exceed the limits specified in subsection (1) of this section. Upon the expiration of the 90-day period, if the depository does not comply with the limits specified in subsection (1) of this section, the depository shall, within three business days after receiving notice from the State Treasurer, cease accepting deposits of public funds.

(b) The limits specified in subsection (1) of this section do not apply to public funds deposits a qualified depository holds in a certificate of deposit, time deposit or insured deposit account under ORS 295.004.

(c) A well capitalized qualified depository or an adequately capitalized qualified depository may accept and hold uninsured public funds deposits that exceed the limit specified in subsection (1)(d) or (e) of this section if eligible collateral is provided in an amount at least equal to the amount by which the uninsured public funds deposits exceed the limit specified in subsection (1)(d) or (e) of this section.

(5) If the State Treasurer notifies a qualified depository that the depository must cease accepting deposits of public funds under subsection (3) or (4) of this section, the State Treasurer may also notify public officials who have deposited public funds in the depository that within 15 business days after the public official receives the notice from the State Treasurer, the public official must withdraw from the depository to which the notice applies all public funds deposits that exceed the limit specified in subsection (1)(d) or (e) of this section. A public official who is notified by the State Treasurer under this subsection must begin to withdraw funds as specified in the notice. Except as required by any applicable law or regulation, a qualified depository may not impose an early withdrawal penalty or a forfeiture of interest with respect to a withdrawal made pursuant to this subsection.

[2007 c.871 §11; 2009 c.821 §13; 2010 c.101 §16; 2011 c.25 §§1,2; 2011 c.477 §§7,8; 2011 c.667 §§3,4; 2017 c.17 §26; 2017 c.500 §6; 2019 c.587 §20]

295.053 Custodian duties when qualified depository ceases holding uninsured public funds; securities. (1) If a qualified depository ceases holding uninsured public funds deposits, the depository's custodian shall continue to hold the depository's pledged securities as collateral pursuant to ORS 295.001 to 295.108 for a period of 30 days after the depository ceases holding uninsured public funds deposits, unless the State Treasurer directs the custodian to hold the depository's pledged securities for a longer period.

(2) If any of a qualified depository's pledged securities matures, expires or otherwise terminates during the period described in subsection (1) of this section, the depository shall provide substitute securities or other collateral until the period expires.

(3) If a qualified depository has not held uninsured public funds deposits during the period described in subsection (1) of this section, at the end of the period the depository's custodian shall return the depository's pledged securities to the depository.

[2007 c.871 §13; 2009 c.821 §14; 2010 c.101 §17; 2019 c.587 §21]

295.055 [1967 c.451 §6; 2007 c.871 §22; renumbered 295.006 in 2007]

295.056 Liability of public officials for loss of public funds. When public funds deposits are made in accordance with ORS 295.001 to 295.108, a public official may not be held liable for any loss of

public funds that results from the failure or default of any qualified depository without fault or neglect on the public official's part.

[2007 c.871 §12; 2019 c.587 §22]

295.061 Treasurer reports; filing; notification of changes; failure to file reports; rules. (1) On or before the date on which each treasurer report is due, each qualified depository shall file the depository's treasurer report with the State Treasurer using systems and processes prescribed by the State Treasurer in individual pledge agreements or by rule.

(2) Each qualified depository that files reports with the State Treasurer under subsection (1) of this section shall notify the State Treasurer in writing or by electronic means within three business days of:

(a) The date on which the qualified depository's net worth is reduced by an amount greater than 10 percent of the amount shown as the depository's net worth on the most recent report the depository submitted pursuant to subsection (1) of this section; or

(b) The date on which the qualified depository ceases to be well capitalized and becomes adequately capitalized or undercapitalized, or ceases to be adequately capitalized and becomes undercapitalized.

(3) An adequately capitalized qualified depository or an undercapitalized qualified depository shall report to the State Treasurer at least once each week the actual amount of uninsured public funds deposits the depository holds. The depository shall report using systems and processes prescribed by the State Treasurer in individual pledge agreements or by rule.

(4) (a) If a qualified depository fails to file the reports or provide the notices required under this section or fails to file the notices or reports required under ORS 295.018, the State Treasurer shall send a notice to each public official who has uninsured public funds on deposit in the depository that the depository failed to comply.

(b) If, after giving notice under paragraph (a) of this subsection, the State Treasurer receives notice that the qualified depository has filed the required reports or provided the required notices, the State Treasurer may notify each public official who was notified under paragraph (a) of this subsection that the depository has complied.

(5) If a qualified depository fails to comply with this section, the depository shall, within three business days after receiving notice from the State Treasurer, cease accepting deposits of uninsured public funds.

[2007 c.871 §7; 2009 c.821 §15; 2010 c.101 §18; 2017 c.500 §7; 2019 c.587 §23]

295.071 Investigation by regulatory bodies other than State Treasurer. (1) The State Treasurer may request that the Director of the Department of Consumer and Business Services or another state or federal agency with primary regulatory authority over a financial institution that is a qualified depository or that applies to become a qualified depository investigate and report to the State Treasurer concerning the condition of the financial institution.

(2) The financial institution examined under this section shall pay the expenses of the investigation and report.

(3) In lieu of an investigation and report, the State Treasurer may rely upon information that the Office of the Comptroller of the Currency, the Office of Thrift Supervision, the National Credit Union Administration, the Federal Deposit Insurance Corporation, the Board of Governors of the Federal Reserve System or a state bank, thrift or credit union regulatory agency makes available to the State Treasurer or to the Director of the Department of Consumer and Business Services.

[2007 c.871 §8; 2010 c.101 §19; 2019 c.587 §24]

295.073 Report to State Treasurer of actions that reduce net worth of depository. The Director of the Department of Consumer and Business Services

shall advise the State Treasurer in writing of any action the director takes or directs a qualified depository to take that will reduce the depository's net worth by more than 10 percent as shown on the most recent treasurer report submitted pursuant to ORS 295.061.

[2007 c.871 §9; 2009 c.821 §16; 2010 c.101 §20; 2019 c.587 §25]

295.081 Time deposits. (1) Subject to ORS 295.002, 295.015 and 295.018, a depository may offer in writing to accept from the State Treasurer time deposits in an unlimited amount or in an aggregate amount stated in the offer and to pay interest on the time deposits at rates specified in the offer. The offer shall continue until the depository delivers or mails, by registered or certified mail, notice to the State Treasurer that modifies or withdraws the offer. While the offer continues in effect, the depository must accept in accordance with the terms of the offer time deposits tendered by the State Treasurer.

(2) Funds the State Treasurer deposits on a time basis must be deposited at the highest rate of interest available for the amount and term of the deposit.

(3) The State Treasurer shall establish time deposits so as to make the deposited moneys as productive as possible, and shall exercise the judgment and care that a person of prudence, discretion and intelligence exercises in the management of the person's own affairs, considering the probable income and the probable safety of the moneys deposited and considering the distribution of the deposits among depositories so as to minimize the possibility of loss of moneys.

[Formerly 295.115; 2010 c.101 §21]

295.084 State Treasurer designation of depositories. In the exercise of the powers and duties conferred under ORS 293.875, the State Treasurer shall designate those depositories or qualified depositories that may be used by state agencies for collecting drafts, checks, certificates of deposit and coupons in satisfaction of a payment obligation owed to the state agency.

[Formerly 295.135; 2010 c.101 §22; 2019 c.587 §26]

295.085 [1967 c.451 §8; repealed by 2007 c.871 §35]

295.087 [Formerly 295.145; repealed by 2009 c.821 §31]

295.091 Geographic preference in selecting depositories; apportioning funds; interest. (1) A public official need not deposit public funds in a depository in a particular locality, but the public official shall give preference to a depository that is engaged in business at an office within the corporate limits of the public official's public body. If more than one local depository exists, the public official shall apportion the public funds among the local depositories in a manner that is equitable and in the best interests of the public body.

(2) The depositories shall pay interest to the public body for deposits evidenced by certificates of deposit or deposits that by agreement may not be withdrawn on less than 30 days' notice, at the rate or rates upon which the public body and the depository agree.

(3) Interest received on deposits of moneys under this section accrues to and becomes a part of the fund the moneys of which were deposited.

(4) This section does not apply to the State Treasurer.

[Formerly 295.155; 2010 c.101 §23; 2019 c.587 §27]

295.093 Depositing moneys with treasurer of public body. Any public official may deposit moneys coming into the hands of the public official in connection with official duties with the treasurer of the public body concerned and obtain a receipt therefor.

[Formerly 295.165; 2019 c.587 §28]

295.097 State agency agreements with third parties; State Treasurer approval; rules. With the written approval of the State Treasurer, a state agency may enter into an agreement with a third party under which the third party facilitates the receipt, collection, transfer, disbursement or payment of public funds and temporarily holds or deposits public funds. A state agency may use alternative methods to those set forth in this chapter to secure public funds that are collected, deposited or

transferred by a third party, if the methods collateralize the public funds at 100 percent and the State Treasurer approves the methods by rule or policy that sets forth how the methods are intended to protect public funds from loss by the third party and by any financial institution used by the third party. The State Treasurer may establish rules, procedures, standards and related requirements that the State Treasurer considers necessary to implement this section.

[2011 c.253 §2; 2019 c.587 §29]

295.098 Public body agreements with third parties; alternative methods. (1) A public official who enters into an agreement with a third party, under which the third party facilitates the receipt, collection, transfer, disbursement or payment of public funds and temporarily holds or deposits public funds, may use alternative methods to those set forth in this chapter to secure public funds that are held or deposited by the third party if the methods meet the following requirements:

(a) The alternative methods must be approved by an official action of the governing body or appropriate public official of the public body. The official action must include findings by the governing body or public official describing any financial institution used by the third party and how the alternative methods will protect public funds from loss by the third party; and

(b) The alternative methods must be designed so that the public funds are fully secured while held or deposited by the third party and until the funds are remitted to the public body. A public official shall calculate the minimum amount of collateral required of a third party as follows:

(A) For the initial calendar quarter of the agreement, the public official shall calculate the minimum amount of collateral to equal a reasonable estimate of the highest amount of public funds that the third party is expected to hold or deposit unremitted at any time within the initial calendar quarter.

(B) Within the first month of each calendar quarter subsequent to the initial calendar quarter of the agreement, the public official shall recalculate the minimum amount of collateral to equal a reasonable estimate of the highest amount of public funds that the third party is expected to hold or deposit unremitted at any time within the current calendar quarter based on factors that must include but are not limited to:

(i) The highest amount of public funds that the third party held or deposited unremitted at any time on any day within the preceding calendar quarter; and

(ii) Any reasonably expected increase or decrease in the amount of public funds the third party is expected to hold or deposit within the current calendar quarter.

(2) If the State Treasurer prepares a model policy related to acceptable alternative methods as described in subsection (1) of this section, a governing body may adopt all or part of the model policy.

(3) This section does not apply to a public body that is a state agency.

(4) As used in this section, "collateral" means cash or a letter of credit or similar instrument intended to ensure payment, approved by a governing body or appropriate public official of a public body, to be used as security to ensure the obligations of a third party.

[2019 c.587 §30]

295.101 Public funds not subject to ORS 295.001 to 295.108. (1) The following public funds are not subject to the provisions of ORS 295.001 to 295.108:

(a) Funds that are deposited for the purpose of paying principal, interest or premium, if any, on bonds, as defined in ORS 286A.001 and

287A.001, and related costs or securing a borrowing related to an agreement for exchange of interest rates entered into under ORS 286A.110 or 287A.335.

(b) Funds that are invested in authorized investments under provisions of law other than ORS 295.001 to 295.108. Funds invested under ORS 293.701 to 293.857 are invested in authorized investments for purposes of this subsection from the time the funds are transferred by the State Treasurer to a third party under the terms of a contract for investment or administration of the funds that requires such a transfer until the time the funds are returned to the treasurer or paid to another party under the terms of the contract.

(c) Negotiable certificates of deposit purchased by the State Treasurer under ORS 293.736 or by an investment manager under ORS 293.741.

(d) Funds that are held by a public official as required by federal law, a judicial or regulatory order, settlement agreement, consent decree or similar arrangement. To the extent allowed by such federal law, order, agreement, decree or arrangement, the public official shall require the funds to be protected in a manner consistent with the provisions of this chapter.

(e) Funds that are held pursuant to a contract with provisions that require the funds to be collateralized at 100 percent, if the funds are deposited into an account that is separate from other accounts of the holder of the funds and the public official and the financial institution in which the funds are deposited have entered into a written agreement that provides a perfected security interest to the public official in collateral valued at an amount at least equal to the amount of funds in the account, in a manner substantially similar to a pledge agreement described in ORS 295.001 (17).

(f) Funds that are held by a trustee or escrow agent, whether commingled with other moneys or in a segregated account, if the trust or escrow agreement provides for collateral or other methods that may be used to secure the moneys that comply with rules or policies adopted by the State Treasurer to protect the funds from loss by the financial institution in which they are deposited.

(2) Notwithstanding subsection (1) of this section, funds deposited by a custodial officer under ORS 294.035 (3)(d) are subject to the provisions of ORS 295.001 to 295.108.

[Formerly 295.011; 2011 c.667 §5; 2019 c.503 §§1,2; 2019 c.587 §31]

295.103 Certain moneys related to motor carriers not public funds. (1) This section applies to the following moneys:

(a) Motor fuel taxes, penalties and interest that are:

(A) Imposed on motor carriers; and

(B) Payable through a clearinghouse operated under an international fuel tax agreement entered into under ORS 825.555; and

(b) Registration fees and other fixed fees and taxes that are:

(A) Imposed on motor carriers for motor vehicles proportionally registered in this state and other jurisdictions;

(B) Apportioned to this state; and

(C) Payable through a clearinghouse operated under an agreement for proportional registration entered into under ORS 826.007.

(2) Moneys described in subsection (1) of this section are not public funds for purposes of ORS 295.001 to 295.108 for the period during which the moneys are held by a clearinghouse described in subsection (1) of this section pending disbursement to, or payment on behalf of, the state.

[2019 c.491 §31]

Note: 295.103 is amended by Enrolled House Bill 3991 (2025 special session). As of the date of publication of the 2025 Edition of the Oregon Revised Statutes, Enrolled House Bill 3991 (2025 special session) is subject to potential referendum petitions that may be filed with the Secretary of State as provided in Article IV, section 1, of the Oregon Constitution. The full text of Enrolled House Bill 3991 (2025 special session) is set forth following 801.610.

295.106 State Treasurer charges; expenses. The State Treasurer may charge depositories for the State Treasurer's reasonable expenses in connection with the State Treasurer's services, duties and activities under ORS 295.001 to 295.108. The State Treasurer shall deposit all moneys received under this section in the Miscellaneous Receipts Account established in the General Fund for the State Treasurer. Moneys received under this section are continuously appropriated to the State Treasurer to pay the State Treasurer's reasonable expenses in connection with the State Treasurer's services, duties and activities under ORS 295.001 to 295.108. A depository shall pay to the State Treasurer all fees and other amounts charged under this section or under rules adopted to implement this section. The State Treasurer may withdraw from a pledge agreement with a depository if the depository does not pay the fees and other amounts charged.

[2007 c.871 §5; 2010 c.101 §24]

295.108 State Treasurer rules; form of report. (1) The State Treasurer shall adopt rules to implement the provisions of ORS 295.001 to 295.108, including without limitation:

(a) Rules describing permitted forms of collateral and the valuation of collateral;

(b) Requirements that must be met by financial institutions and other third parties outside this state to hold public funds;

(c) Fees paid by qualified depositories or custodians; and

(d) Reporting by depositories, qualified depositories and custodians.

(2) The State Treasurer shall design the treasurer report required by ORS 295.061 to minimize the regulatory burden of completing and submitting the report and, to the greatest extent practicable, to make the form of the report and the content required in the report consistent with the information required by the qualified depository's report of condition and income.

[2007 c.871 §14; 2010 c.101 §25; 2019 c.587 §32]

295.195 Deposit of funds in foreign country; effect on collateral; report to Legislative Assembly. (1) Notwithstanding any other provision of this chapter, to the extent estimated to be necessary to fund operations or activities for one biennium of the State of Oregon in a foreign country, the State Treasurer may deposit funds in a financial institution in a foreign country.

(2) When funds are deposited in a financial institution in a foreign country pursuant to subsection (1) of this section, the institution shall not be required to maintain collateral as provided in ORS 295.015. Reasonable and prudent measures to protect the public funds from loss shall be exercised to the extent permitted under the laws of the foreign country.

(3) The State Treasurer shall report to the Legislative Assembly biennially on the amounts of deposits in foreign countries, and the operation and activities funded by such deposits. The report shall be submitted to the offices of the President of the Senate and the Speaker of the House of Representatives and shall be referred by each of them to appropriate standing committees other than committees concerned with budgets of the State Treasurer or the activity or operation so funded.

[1983 c.374 §§1,2; 1989 c.399 §1; 2009 c.762 §56; 2015 c.767 §13]

295.205 Accounts in financial institutions outside Oregon; conditions; rules. (1) Notwithstanding any other law:

(a) The State Treasurer may establish demand deposit accounts in financial institutions outside this state for the purpose of accepting deposits of funds related to state investments

in the geographical areas that the financial institutions serve.

(b) Moneys that a financial institution or other entity receives or collects under an agreement to provide loan servicing for a state agency or public body may be deposited in accounts in financial institutions outside this state for the purpose of:

(A) Accepting payments of loan principal and interest;

(B) Accepting and holding escrow funds;

(C) Accepting and holding funds required to be held in reserve with or on behalf of the state agency or public body; or

(D) Collecting and holding other moneys the financial institution must collect and hold for loan servicing under the agreement before remitting the moneys to the state agency, public body or a third party.

(c) Public funds held by a trustee or escrow agent pursuant to a trust agreement, bond indenture, certificate of participation indenture, escrow agreement or similar agreement with a state agency or public body may be deposited in accounts in financial institutions outside this state.

(2) The State Treasurer shall establish the demand deposit accounts described in subsection (1)(a) of this section in accordance with rules adopted pursuant to ORS 183.310 to 183.410 that ensure that reasonable and prudent measures are taken to protect state investment funds from loss.

(3) When accounts are established for a state agency or public body under subsection (1)(b) or (c) of this section, the state agency or public body shall require in the relevant agreement or indenture that reasonable and prudent measures are taken to protect the moneys in the accounts from loss.

(4) As used in this section, the terms "financial institution outside this state" and "public body" have the meanings given those terms in ORS 295.001.

[1993 c.69 §1; 1995 c.259 §5; 1997 c.171 §15; 2007 c.871 §24; 2010 c.101 §26; 2019 c.587 §33]

CHAPTER 296 [Reserved for expansion]

Item 3a

SU EXTENSION SERVICE | Josephine County

l/Extension Service District

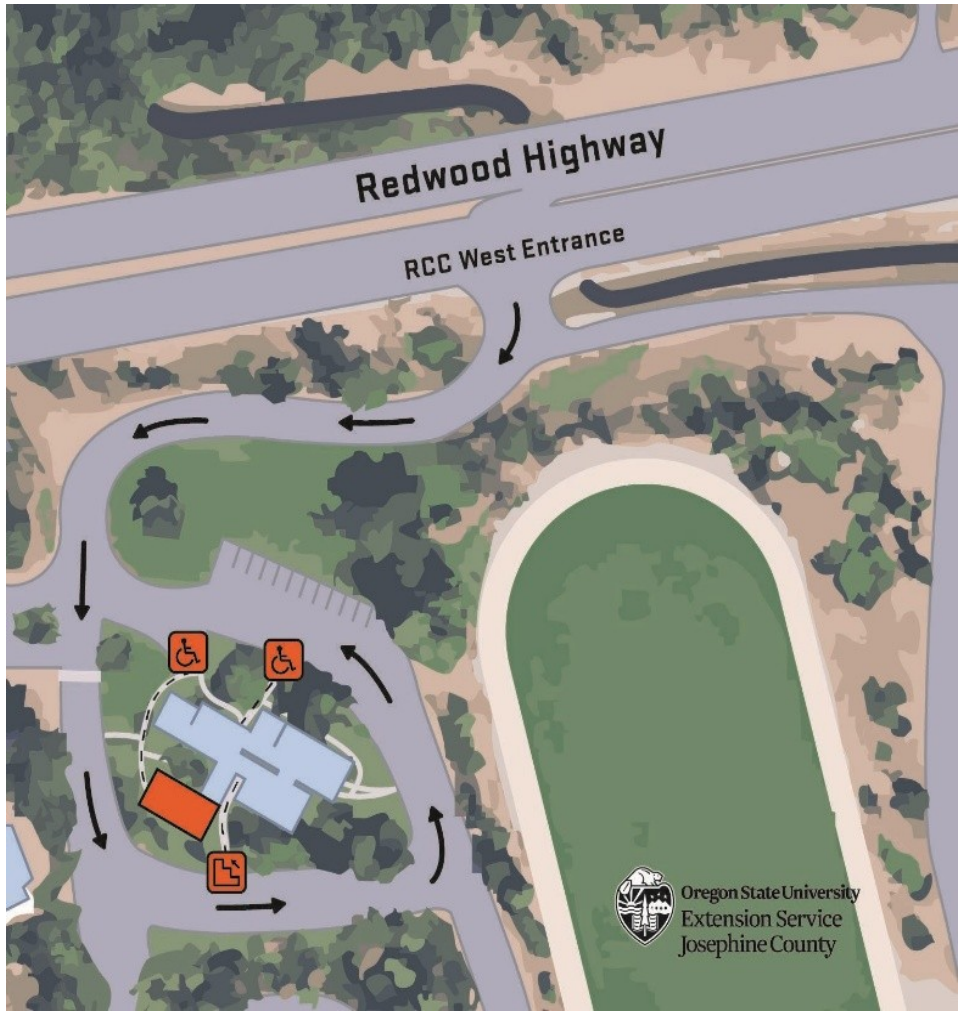
2026 Report



Photo: Chery Leitch

Oregon State University

OSU EXTENSION FACILITIES



Location

Rogue Community College

Building V

Office Hours

Monday to Friday

8 am to 12 pm, 1 pm to 5 pm

Oregon State University
Extension Service
Josephine County

Frank Boothby

4-H Youth Development and Master Gardener Program Manager and Community Relations



Recent Highlights

- 4-H enrollment included 93 members and 21 volunteers, with more than 240 exhibits entered in the 2026 County Fair
- Fall Seed to Supper Education led by Master Gardener Volunteers
- Re-establishment of both the Master Gardener and 4-H Associations
- Assisted with the establishment of the Apprentice Gardener pilot program

Upcoming Plans

- Increase the number of clinics and workshops for 4-H members
- Expand 4-H club opportunities

Oregon State University
Extension Service
Josephine County

Daniela Garcia

Health Extension Program Coordinator



Recent Highlights

- Master Food Preservers Certification Program
- Community Outreach Events (County Fair, Growers Market)
- Community Workshops
- Master Food Preservation Helpline
- Gauge Testing

Upcoming Plans

- Develop partnerships to expand physical activity programs
- Master Food Preserver Certification Program
- Community Workshops and Outreach Events
- Master Food Preservation Helpline
- Food Safety Demonstrations in Rural Areas
- Gauge Testing

Oregon State University
Extension Service
Josephine County

Anne Gross

Health Extension Education Program Assistant



Recent Highlights

- Nutrition education classes for more than 600 preschool-through high-school-aged youth
- Food Hero resources, microgreen growing kits & Double Up Food Bucks info distributed countywide.
- Promoted healthy eating and physical activity at 6 community and housing authority events.

Upcoming Plans

- Continue nutrition education classes and outreach.
- Explore parent nutrition education classes with Josephine Housing and Community Development Council and SOESD Early Learning Hub.
- Expand cross-Extension partnerships to support innovative nutrition and physical activity programming.

Oregon State University
Extension Service
Josephine County

Maud Powell

Small Farms Professor of Practice



Recent Highlights

- Exploring the Small Farm Dream Program
- Farm tour of Flora Organics
- Sustainable Agriculture Research and Education (SARE) grant support for farmers and ranchers

Upcoming Plans

- Climate resilience programming for Rogue Valley community-based organizations
- What Do I Do With My Small Farm? Workshop
- Fire-resiliency workshops

Oregon State University
Extension Service
Josephine County

Nan Xu

Crop and Soil Science Assistant Professor of Practice



Recent Highlights

- Pasture Management Class Series (March – May 2026)
- Grower consultations and farm visits on soil testing, pasture management, weed control, and crop production
- Developing grower-driven research projects (e.g. soil occultation and cucumber beetle management)

Upcoming Plans

- Upcoming Extension workshops: Soil Testing Workshop and Diagnosing Common Problems in Vegetable Crops Workshop Series
- Continue providing technical assistance through grower consultations and farm visits
- Vineyard & on-farm research: Continue cover crop trials, share early results, and launch soil occultation and cucumber beetle studies (funding dependent)

Oregon State University
Extension Service
Josephine County

Chris Adlam

Regional Fire Specialist, Southwest Region



Recent Highlights

- IGNITE Prescribed Fire Skills Weekend (75-100 participants annually)
- Private land forest restoration case study in Takilma
- Support for high school Wildland Fire CTE program development

Upcoming Plans

- Support for 4,000-acre Grayback Project through Rogue Forest Partners
- Pile-burning and forest-thinning workshops
- Continued training for members of the Rogue Valley Prescribed Burn Association, including live-fire training

Oregon State University
Extension Service
Josephine County



Clay Guetling
Administrative Office Manager



Edilane Costa Martins
Livestock and Forages Assistant Professor of Practice



Stephanie Garcia
Agriculture and Master Gardener Coordinator



Michael McNorvell
Forestry and Natural Resources Assistant Professor of Practice



Cameron Johnson
Office Specialist 2



Jamie Davis
Regional Director

Thank you!



Oregon State University
Extension Service



Oregon State University Extension Service
Josephine County

Faculty & Staff Contact Information

Name & Position	Phone	Email	Service Area
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Oregon State University

Continued Next Page

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Nan Xu *Crop & Soil Science Assistant Professor of Practice*	541-930-8413	nan.xu@oregonstate.edu	Josephine & Jackson Counties
Jamie Davis *Regional Director - Southern Region*	541-815-0963	jamie.davis@oregonstate.edu	Douglas, Harney, Josephine, Lake, Jackson, & Klamath Counties

Josephine County Extension Office

Location

Rogue Community College - Redwood Campus
3345 Redwood Hwy
Grants Pass, OR 97527
Building V (orange building on map)

Contact us

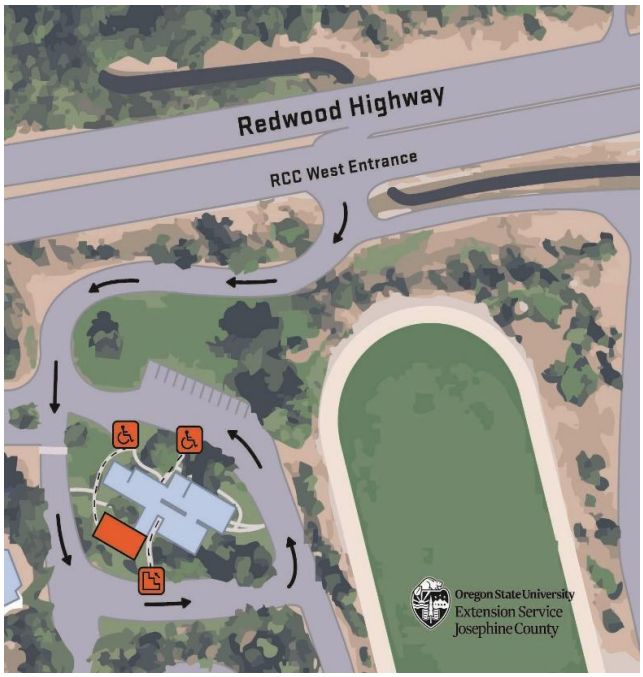
541-241-3050

Office email

josephine.extension@oregonstate.edu

Website

extension.oregonstate.edu/josephine



Oregon State University
Extension Service
Josephine County

A-01: County ~~Polices~~Policies

A. Sources and Review

1. County ~~Polices~~Policies can be found in the following sources:
    - Administrative Policy Manual
    - Personnel Policy Manual
    - Safety Manual
    - Fleet Handbook
2. Additionally, departments may develop departmental policies and procedures, subject to review by Legal Counsel and approval by the County Board. Where there is a conflict between departmental policies and County policies or state law, the County policies or state law shall prevail.
3. Unless otherwise ordered by the Board of County Commissioners, current County policies described in (A)(1), above, shall be publicly available on the County website. Approved department policies must have a copy filed with Human Resources and the Board of County Commissioners.
4. Unless a shorter period is otherwise required, policies should be reviewed at least once every five years. The Board of Commissioners can review any policy at any time.

B. Adoption, Amendment and Repeal

1. The adoption of any new County policy or procedure, or amendment, or repeal of any existing County policy or procedure, may be initiated by the Board of Commissioners on its own initiative, or by any Department Head bringing a proposal to the Board of Commissioners for approval to move forward.
2. ~~Once a proposal has been approved to move forward the draft will be proposed by the subject matter experts, reviewed by Legal and presented to the Board of County Commissioners.~~Once a proposal has been approved to move forward, the draft may be prepared by the proposer or by any person the proposer or the Board of Commissioners designates. The draft will be reviewed by Legal and presented to the Board of County Commissioners.
3. ~~The Department Heads shall have an opportunity to make recommendations regarding policy, as described in Administrative Policy A-2.~~The Department Heads shall have an opportunity to review and comment on each proposed policy before adoption, as described in Administrative Policy A-02.
4. After a draft has been prepared, the Board of County Commissioners will review and may revise the proposed policy and determine whether to move forward with the new, amended, or repealed policy.
5. The Board of Commissioners shall allow a reasonable period for review and comment by employees (internal review). Personnel policies shall have an internal review period of not less than ten (10) business days, or as otherwise required by any applicable collective bargaining period, to allow for union and non-union committee review. The review period for all other policies shall be not less than three (3) business days.

6. At the end of the internal review and comment period, the Board of Commissioners may revise the proposed policy in response to comments received. If substantive revisions are made, the Board of Commissioners may re-distribute the revised draft of the proposed policy to Department Heads and may allow an additional period for review and comment. All comment periods will comply with any applicable collective bargaining agreement requirements.
7. At the end of the final internal review and comment period, the policy or procedures shall then be adopted, amended, or repealed by Order of the Board at a properly noticed public meeting at which members of the public shall be allowed to comment on the proposal. Comments received from Department Heads under Administrative Policy A-02 shall be included in the agenda packet materials for the adoption.
8. Adopted or amended policies or notice of repealed policies shall be distributed to all County employees and updated on the County website within 2 business days of the action. Human Resources shall be responsible for distributing updated Personnel or Administrative policies and ensuring website availability, with all other policies distributed and posted by the Board Office.
9. The Board of Commissioners reserves the right to suspend the enforcement of any policy or procedure at any time. Subject to existing contractual and bargaining agreements, the Board of Commissioners reserves the right to adopt, amend, or repeal any County policy at any time.
10. The Board of County Commissioners has the authority to grant exceptions to any policy.
11. Expedited Process for Minor Revisions. Minor revisions such as fixing grammar, spelling, or punctuation; revising policy formatting; updating position and/or department titles, statutory, regulatory, ordinance, or policy references; or similar non-substantive updates and revisions may be done without a review period.

C. Policy Archive

1. Policies that have been repealed and versions of adopted policies that have been revised or replaced shall be archived with the Board of Commissioners' Office
2. A copy of the Board Order adopting, repealing, or revising any policies shall be archived with the repealed and revised policies.
3. A list of policies repealed, revised, or replaced shall be attached to each policy manual and updated at the time of repeal, revision, or replacement

A-02: ~~Leadership Committee~~Department Head Review of Proposed Policies

Repealed and Replaced: _____, 2026 (Board Order No. 2026-____)

~~**A. Leadership Team**~~

~~1. The roles of the Leadership Team will Include:~~

~~a. Making recommendations to the Board of County Commissioners (BCC) regarding amendments or revisions to the personnel rules.~~

~~b. Serving as a labor-management consultant to the BCC.~~

~~c. Making recommendations to the BCC regarding the development, amendment, or revision of Josephine County Policies and Procedures.~~

~~d. Internal problem-solving regarding issues relevant to multiple departments within the County.~~

~~e. Leadership of County Core Value process including, but not limited to the following:~~

~~f. Partnering with BCC to ensure Core Values process is implemented countywide; and~~

~~g. Fostering implementation and annual evaluation of County Action Plan and make recommendations for updating as necessary to the BCC.~~

~~h. Performing other countywide administrative tasks that may be assigned by the BCC.~~

~~**B. Composition**~~

~~The Leadership Team shall consist of all elected and appointed Department Heads and one County Commissioner. Only elected department heads shall have voting rights.~~

~~**C. Meetings**~~

~~1. Meetings shall be held not less than quarterly.~~

~~2. The Board Office shall be responsible for coordinating the Leadership Team meetings and administration~~

A. Purpose

1. The purpose of this policy is to ensure that no County policy is adopted, amended, or repealed without the County's Department Heads, elected and appointed, first having a documented opportunity to review and comment on the proposal, and without the Board of County Commissioners (BCC) receiving those comments before acting.

2. This policy establishes a written review process. It does not establish a standing committee, and no meeting is required to complete review under this policy.

B. Distribution for Review

1. When the BCC approves a proposal to move forward under Policy A-01(B), the Board Office shall distribute the draft in writing to all Department Heads at the start of the internal review period under Policy A-01(B)(5). Electronic distribution satisfies this requirement.

2. The distribution shall state the deadline for comments under Policy A-01(B)(5) and the person to whom comments are to be submitted.

C. Comment

1. Any Department Head may submit written comments by the stated deadline. A Department Head who does not do so is deemed to have received the opportunity to review, and the proposal may proceed; silence shall not delay adoption.

D. Comments to the Board

1. A proposal shall not be scheduled for adoption under Policy A-01(B)(7) until the applicable review period has ended. Comments received from Department Heads, together with the date of distribution, shall be included in the agenda packet materials under Policy A-05.

E. Exceptions

1. Expedited minor revisions under Policy A-01(B)(11) are not subject to this policy.

2. Nothing in this policy limits the authority of the BCC under Policy A-01(B)(9) and (B)(10) or under the Josephine County Charter.

Josephine County, Oregon

Department Report to the Board of County Commissioners

Required semiannually of departments. Four pages and Attachment A, in this form every period. Posted with the agenda packet.

Field	Entry
Department	
Department head	
Prepared by (name, phone, email)	
Reporting period	☐ July 1 – December 31, 20____ ☐ Fiscal year July 1, 20____ – June 30, 20____ (unaudited)
Date submitted / due date / business session	Submitted: _____ Due: _____ Session: _____
Data as of	Finance: _____ HR: _____ Department systems: _____

Board attention requested this period: ☐ Yes — see page 4 ☐ No

Key figures

The same five figures every period, as defined in Attachment A. The prior-year column may be blank in the first year.

Key figure (Attachment A)	This period	Same period last year	Source (system, report, run date)

Budget status

Produced by Finance for the department's funds, using Finance's year-to-date method. Finance flags variances under its rule; the department explains them below.

Category	Adopted budget	YTD plan	YTD actual	Variance ($)	Year-end forecast
Personnel services					
Materials and services					
Capital outlay					
Debt, transfers, other					
Total					

Explanation of any variance Finance flagged (cause; action; date back on plan):

_____

_____

Commitments and open items

Commitments to the Board

Carried forward by the Board Office from minutes and budget presentations. Update the status; do not reword the commitment. Items leave this table only when the Board closes them.

Commitment as recorded	Source and date	Promised completion	Status (Done / On track / Late / Changed / Dropped)	Reason; new date	Closed by Board (date)

Audit findings

Finding	Source and date	Status	Target close

☐ No open audit findings.

Capital projects

Original figures are those in the first Board action approving the project and never change.

Project	Original budget and finish date	Current budget and finish date (approval date)	Spent to date	Forecast at completion

☐ No capital projects.

Grants

Grant	Award	Deadline	Risk of lapse or clawback (yes / no; why)

☐ No grants at risk.

Regulatory notices or mandates at risk:

_____

_____

People and what is coming

Staffing

Produced by Human Resources as of the period end.

Authorized positions	Filled	Vacant	Vacant more than 90 days

Positions vacant more than 90 days

Position	Days vacant	Effect on service	Plan

☐ None.

Single points of failure

Functions that would stop or degrade if one position were unavailable, and what is in place.

Function	Position it depends on	What is in place (backup, written procedure)	Gap, if any

Looking ahead

Next six months (risks, cost pressures, service issues):

_____

_____

_____

Six to twelve months:

_____

_____

State or federal changes affecting the department:

_____

_____

Requests and certification

Decisions or actions requested of the Board

Specific enough for a motion. The Board Office records the Board's response and its date.

#	Request	Needed by	Cost	Page	Board response and date (Board Office)

☐ No Board action requested this period.

Certification

I certify that the narrative in this report is accurate and complete to the best of my knowledge; that the figures are drawn from Finance, Payroll, and the systems named in this report as of the dates shown; and that errors found later will be corrected by erratum.

Signature		Date
Printed name		Title

For Board Office use

Received (date)		Posted with packet (date)	
Heard at business session (date)		Responses recorded on page 4 (date)	

Attachment A — Key figure definitions

Standing attachment. The department proposes its five figures with its first report. Definitions change only by Board action and are footnoted for one year after a change. Where a figure cannot yet be produced, record the source that will produce it and the period it begins.

Key figure	Definition and formula	Source system and report	First reported (period)	Change history (date; Board action)

Department: _____ Attachment A version: _____ Approved by Board action: _____